
Appeal Decision

Site visit made on 29 July 2026

by **B Pattison BA (Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 09 September 2026

Appeal Ref: 6005433

The Manor House, Headley Common Road, Headley, Surrey KT18 6NA

Grid Ref Easting: 520788, Grid Ref Northing: 154119

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Ms Mary Jane Palmer against the decision of Mole Valley District Council.
 - The application Ref is MO/2025/02228.
 - The development proposed is Retention of two containers used storage purposes.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. In relation to the proposal's effect on the Area of Great Landscape Value, the Council's decision notice refers to Policy EN9 of the Mole Valley Local Plan (2024) (LP). The Council has confirmed that this was a typographical error, and the correct policy in relation to the reason for refusal is EN8 of the LP. The appellant has had an opportunity to comment, and accordingly I have determined the appeal on this basis.
3. On 17 August 2026, Government published a revised National Planning Policy Framework (the Framework). This included revisions to policies that are pertinent to the appeal, such as those relating to development in the Green Belt. During the appeal the main parties were invited to comment on the relevance of the revised Framework to the appeal proposal. In my decision, I have had regard to the written responses.

Main Issues

4. The main issues are:
 - whether or not the proposal would be inappropriate development within the Green Belt having regard to the Framework and any relevant development plan policies;
 - the effect of the proposal on the openness of the Green Belt;
 - the effect of the proposal on the character and appearance of the area;
 - The effect of the proposal on the setting of the nearby Grade II listed building, The Manor House; and

- if the appeal scheme is found to be inappropriate development, whether the harm by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations so as to amount to the very special circumstances needed to justify the development.

Reasons

Whether or not inappropriate development in the Green Belt

5. The appeal site is a parcel of land which contains a stables building and two storage containers. Adjacent to the site, but within the appellant's ownership is a sand school. The gated access to the site fronts a private single track road which leads from Headley Common Road. It is located within the Metropolitan Green Belt and an Area of Great Landscape Value (AGLV).
6. Policy GB6.2. of the Framework states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.
7. Policy EN1 of the LP states that, inappropriate development will not be permitted in the Green Belt, unless very special circumstances are demonstrated which are concluded to outweigh the potential harm, including harm to the openness of the Green Belt and the purposes of including land within it. The policy outlines exceptions to the definition of inappropriate development which will be permitted where they comply with other relevant policies in the LP. This part of Policy EN1 is broadly consistent with the Framework which, within Policy GB7.1 outlines a number of categories of development which are not inappropriate development in the Green Belt.
8. The main parties are in agreement that the proposal does not fall within any of the exceptions within Policy EN1 of the LP. Nor does it fall within any of the categories of development which are not inappropriate development outlined within Policy GB7.1 of the Framework.

- Grey-Belt

9. The Framework defines 'grey belt' as land in the Green Belt comprising previously developed land and/or any other land that, in either case, does not strongly contribute to any of purposes (a), (b), or (d) in policy GB2. The Council indicate that the appeal site can be considered 'grey belt' land.
10. Under Policy GB7.g of the Framework development should not be regarded as inappropriate in the Green Belt if four criteria are met. The Council indicate that the proposal complies with criteria GB7.g.i , and that criteria GB7.g.iv does not apply.
11. Criteria GB7.g.ii requires that there is an evidenced unmet need for the type of development proposed. The appellant states that the storage containers are required for the storage of equipment used in the upkeep and management of the appeal site, as well as furniture and household items intended for a future dwelling on the site. However, there is no substantive evidence before me to demonstrate that there is an unmet need for this type of development.
12. Criteria GB7.g.iii requires that the proposal be in a sustainable location, with particular reference to Policy TR3 of the Framework. Policy TR3 requires that development is located where it can support sustainable patterns of movement,

enable good accessibility for different users and make the most of existing and proposed transport infrastructure. The appeal site is situated in a rural and relatively isolated location. Given the absence of nearby and regular public transport services, users of the storage containers would be heavily reliant on private car journeys.

13. On this matter, I conclude that the development would not be in a sustainable location, having regard to the limited opportunities available to maximise sustainable transport solutions commensurate with the rural nature of the site.
14. In summary, although the appeal site is grey belt land, the proposal conflicts with criteria GB7.g.ii and GB7.g.iii of the Framework. Consequently, the proposal is inappropriate development in the Green Belt.

Openness

15. Chapter 13 of the Framework identifies that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The essential characteristics of Green Belts are their openness and their permanence. Openness has both a visual and spatial dimension.
16. I acknowledge that two storage containers have been removed from the site, and that the two remaining containers would be on the site for a temporary period. Nonetheless, the proposal has introduced two relatively large, boxy structures into a space where previously there was no development, thereby eroding open space. This has a harmful effect on spatial openness.
17. The dense hedgerow to the appeal site provides some visual screening of the containers. However, they are visible in views through the gated vehicular access to the site. As a result, the appeal site's existing open character has been eroded, being replaced by the large storage containers. This has a harmful effect on visual openness.
18. Therefore, I conclude that the proposal does not preserve, and has a harmful effect on, the openness of the Green Belt. Given the scale of the proposal, I consider the harm to openness to be moderate. As such, the proposal would conflict with the provisions within the Framework which seek to preserve the openness of the Green Belt.

Character and appearance

19. The appeal site is located in close proximity to existing dwellings situated along the private road serving The Manor House. The road's single-track width, mature planted boundaries, and nearby small areas of woodland contribute positively to the area's pleasant rural character. This is reflected by the site's designation within an Area of Great Landscape Value, which acts as a buffer to the Surrey Hills National Landscape and has considerable landscape value in its own right.
20. I note that the containers have no foundations, are simply placed on level ground and can be removed from the site easily and with little lasting impact on the land. Nevertheless, within this rural landscape, the storage containers appear as strident, angular and utilitarian additions, which negatively contrast with the gentle, verdant landscape and traditional architecture of nearby dwellings. I did not observe examples of storage containers within other nearby sites, and it seems to me, that they are not a characteristic feature within the landscape.

21. The impacts of the appeal scheme are limited to near distance views, meaning the impact on the character of the AGLV would be limited. Nevertheless, the containers result in urbanisation of an area of the appeal site which was previously open.
22. It has been put to me that a planning condition could ensure that the shipping containers are finished in a muted colour, such as green. Whilst this would slightly reduce their visual impact, they would still appear as utilitarian and uncharacteristic additions to the rural area.
23. Similarly, existing planting and proposed landscaping may slightly reduce the visual impact of the development. However, landscaping should generally be regarded as a means of enhancing development, rather than as a measure to render an otherwise harmful development less harmful. Consequently, a planning condition requiring landscaping would not sufficiently mitigate the visual harm.
24. Whilst the containers would be in situ for a temporary period, they would cause harm to the character and appearance of the area and AGLV for that period. As a result, the proposal conflicts with Policies EN4 and EN8 of the LP insofar as they require new developments to be high-quality design, make a positive contribution to local character, whilst ensuring that they do not harm the distinctive character and scenic beauty of the AGLV.

Listed building

25. Section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act) requires me, in determining this appeal, to have special regard to the desirability of preserving the listed building, or its setting, or any features of special architectural or historic interest which it possesses.
26. The List description confirms that the nearby Grade II listed building, The Manor House (the LB), was listed in 1987 and dates from the early twentieth century. It was designed by Sir Guy Dawber, who was previously president of the Royal Institute of British Architects (RIBA). It is two storeys in height with attics and dormers, and is constructed in a symmetrical Neo-Georgian style.
27. From my observations on the site visit and the evidence before me, the significance of the LB is derived mostly from its architectural quality and its association with a notable British architect. There is disagreement between the parties as to whether the appeal site is within the setting of the LB. I note that historical maps indicate that the appeal site has never been part of the curtilage of the LB. Dense, mature hedging within the appeal site and along the boundaries of the LB limit views between the two sites, although the roof of the LB can be seen from the appeal site. Notwithstanding this, the appeal site is clearly visible in viewpoints from a secondary, easternmost vehicular access to the LB which leads from the private road. As such, and given the proximity of the appeal proposal to the heritage asset, I conclude that the appeal site is within the setting of the LB.
28. I have previously found that despite the screening of some views provided by the hedging surrounding the site, the storage containers, as a result of their appearance as strident, utilitarian structures have an urbanising effect on the immediate area. They appear in stark contrast to the rural character of the area and the ordered appearance of the LB. Whilst I appreciate that the surroundings to the LB have been altered over time, with the development of the area, the siting of

the proposal harms the rural setting of the LB. Given there is limited intervisibility between The Manor House itself and the proposal this is at the lower end of less than substantial harm.

29. Policy HE6 of the Framework states that when considering the potential effect of a development proposal on the significance of a designated heritage asset, substantial weight should be given to the asset's conservation, and that any harm to a designated heritage asset will be a matter of considerable importance and weight.
30. Policy HE6.4 advises that where a development proposal would harm the significance of a designated heritage asset the effect on the asset and its significance should be weighed against any public benefits resulting from the proposal. Whilst the proposal provides storage space for the appellant, this, given the nature of the appeal proposal, equates to a private rather than a public benefit. The appellant indicates that any realistic alternative to the storage containers would be a more substantial and permanent structure, which would require foundations and groundworks, and would also be permanent. However, these factors do not amount to public benefits. They do not therefore outweigh the harm I have identified to the setting of the LB and the great weight given to the conservation of designated heritage assets.
31. I therefore conclude that, because of its utilitarian appearance and siting, the proposal is harmful to the setting of the LB. Therefore, the proposal conflicts with Policy EN6 of the LP which prioritises the conservation of heritage assets when considering the overall impact of development proposals upon their significance and importance.

Other considerations

32. I note that the proposal would be in place for a temporary period of time. It has also been put to me that the proposal would not conflict with the five purposes of the Green Belt. However, given my findings on the proposal's effect on the openness of the Green Belt, I give this consideration limited weight.
33. The appellant indicates that any realistic alternative to the storage containers would be a more substantial and permanent structure, which would require foundations and groundworks, and would also be unnecessary given the temporary nature of the storage requirement. Whilst this may be the case, there is no substantive evidence before me to indicate that such an alternative proposal for storage would not also be considered inappropriate development within the Green Belt. Accordingly, I do not afford this factor positive weight in favour of the proposal.
34. The containers are at least partly required to securely store equipment necessary for the proper maintenance and stewardship of the site. Given the scale of the proposal, I afford this factor limited weight.

Green Belt Balance and Conclusion

35. The proposal would constitute inappropriate development in the Green Belt which should not be approved except in very special circumstances. It would also not preserve, and would have a harmful effect on the visual and spatial openness of the Green Belt. Therefore, the proposed development is contrary to Policy EN1 of

the LP and the principles of the Framework that seek to protect the Green Belt from inappropriate development.

36. I have also found harm to the character and appearance of the area, including the AGLV, and less than substantial harm to the setting of the Grade II Manor House.
37. Very special circumstances will not exist unless the harm to the Green Belt, and any other harm, is clearly outweighed by other considerations. The other considerations in relation to the proposal do not clearly outweigh the harm that I have identified. Consequently, the very special circumstances necessary to justify the development do not exist.
38. The proposal would be contrary to the development plan and the Framework taken as a whole. There are no other material considerations which indicate that the decision should be determined other than in accordance with the development plan. Therefore, for the reasons given above, I conclude that the appeal should be dismissed.

B Pattison

INSPECTOR

